

**IN THE 327TH DISTRICT COURT
EL PASO COUNTY, TEXAS**

STATE OF TEXAS

v.

CHRISTOPHER ARTHUR
DOMINGUEZ

§
§
§
§

CAUSE NO. 20260D00828

**DEFENDANT'S MOTION FOR DISCLOSURE OF EXCULPATORY AND
IMPEACHMENT**

TO THE HONORABLE JUDGE OF SAID COURT:

NOW COMES Christopher Arthur Dominguez, Defendant in the above styled and numbered cause, appearing pro se, and respectfully moves this Court to order the State of Texas to disclose all exculpatory, mitigating, and impeachment evidence in accordance with constitutional and statutory requirements.

- I. The State is required to disclose evidence favorable to the accused that is material either to guilt or punishment.
- II. The Defendant requests disclosure of any evidence that tends to negate guilt, reduce culpability, mitigate punishment, or affect the credibility of any State witness.
- III. Such evidence includes but is not limited to:
 1. Evidence tending to negate Defendant's guilt.
 2. Evidence tending to mitigate punishment.
 3. Evidence affecting the credibility, bias, or reliability of any witness.
 4. Inconsistent statements made by witnesses.
 5. Evidence suggesting another individual committed the alleged offense.
 6. Any agreements, promises, inducements, or benefits provided to witnesses.
- IV. The Defendant requests that the State be ordered to disclose such evidence immediately and to continue disclosing such evidence as it becomes known.

PRAYER

WHEREFORE, PREMISES CONSIDERED, Defendant respectfully prays that the Court *order* the State to disclose all exculpatory, mitigating, and impeachment evidence and grant such other relief as may be just.

Respectfully submitted,
Christopher Arthur Dominguez
P.O. Box 2300
Anthony, NM 88021